



File No.: EXP202203741

RESOLUTION ON THE EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection became aware, through a third-party complaint, of certain facts that could violate data protection legislation. On 25/03/2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD) to investigate A.A.A. in relation to the following facts:

Complaint regarding the publication on a Twitter profile of a video showing an assault on a minor by what appear to be two other minors, while a third party records it. The video went viral, as noted by the complainant, who links three news articles that refer to these events.

A simple search on Twitter revealed that the video was widely disseminated by users who wanted to denounce the assault, but what they did was amplify its dissemination. Special mention should be made of the numerous media outlets that echoed the news, using screenshots from the video to illustrate the images. Currently, the contents have already been removed, but it is necessary to investigate the person responsible for them.

SECOND: On 25/03/2022, in accordance with Article 67 of the LOPDGDD, it was agreed to initiate the preliminary investigation proceedings.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

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In accordance with the functions conferred by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigation proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigation Actions

Article 67 of the LOPDGDD establishes the following regarding preliminary investigation actions:

"1. Before adopting the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the processing of the proceedings.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed twelve months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication that has been sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of Proceedings

In relation to the preliminary actions, the Development Regulation of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 provides that “The expiration of the term without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions.”

In accordance with the provisions of the transcribed articles, the preliminary actions must be understood as expired if more than twelve months have elapsed from the date

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of admission to process of the claim, no agreement to initiate sanctioning procedure has been issued and notified.

In the present case, the computation of the maximum duration of twelve months for the preliminary proceedings began on 25/03/2022 and is still pending completion, therefore it must be declared expired.

IV

Initiation of new investigative actions

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be fulfilled.”

In this regard, the National Court, in its ruling of July 10, 2013 (JUR 2013\259250), considers that “once the expiration of the preliminary investigative actions initiated by the Spanish Agency for Data Protection has been declared, this circumstance does not pose any obstacle for said entity to initiate or restart other preliminary investigative actions regarding the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present actions, the reported facts were referred to the PUBLIC PROSECUTOR'S OFFICE to determine whether they could constitute a possible criminal offense.

In turn, information has been requested to determine the identity of the profile on the social network TWITTER where the video of the assault on the minor was published.

The requested data, of which this Agency is still unaware, are essential to conclude the investigation of the reported facts, and given that the facts under investigation are not prescribed, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigative actions.

Therefore, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative actions.

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SECOND: TO OPEN new investigative actions and incorporate into these new actions the documentation that integrates the preliminary actions declared expired by this act.

THIRD: TO NOTIFY this Resolution to the claiming party.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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